shot in an encounter with security forces in 2004 (his body was recognized by Afzal's brother). Only four of the twelve accused were arrested: Afzal Guru, his cousin Shaukat Hussain Guru, Shaukat's wife Afsan Guru and S.A.R. Geelani, a teacher of Arabic in Delhi University. Not one of them was convicted under POTA charges. Geelani and Afsan were acquitted.

Shaukat was sentenced to ten years' rigorous imprisonment because he knew about the conspiracy. Afzal was given the death sentence on the charges of murder and waging war against the State.

The thoroughness with which the investigations of such an important case were carried out can be judged by the remarks made by the Delhi High Court. The court has pulled up the investigators for the production of false arrest memos, doctoring of telephone conversations and the illegal confining of people to force them to sign blank papers.[2] Though, as Nandita Haksar, Geelani's lawyer, points out, despite these observations, 'the courts did not pass any strictures against the officers for their shoddy and illegal investigations.'

There is no direct evidence against Afzal. None of the eighty prosecution witnesses ever even alleged that Afzal belonged to or was in any way associated with any terrorist organization. He has been awarded the death sentence entirely on the basis of circumstantial evidence. Afzal did not shy away from admitting the possibly incriminating fact that he brought Mohammad from Kashmir and that he accompanied him when the latter purchased a second-hand Ambassador, two days before the attack. The Supreme Court, too, in its judgement, observes that even when his lawyer attempted to deny this fact during the trial, Afzal insisted that he indeed had accompanied Mohammad.[3]

But Afzal maintains that he did this at the behest of the Special Task Force (STF) of the Jammu and Kashmir police. Afzal alleged in a letter to his lawyer Sushil Kumar in the Supreme Court that Davinder Singh, Deputy SP of Humhama in Jammu and Kashmir, asked him to take Mohammad to Delhi and arrange for his stay there. 'Since I was not knowing the man . . . but I suspected this man is not Kashmiri, as he did not speak Kashmiri,' wrote Afzal.[4] Nandita Haksar charges that the facts of this letter were never put on record before the courts.

It is clear from the case records that Afzal is a surrendered militant who gave himself up to the BSF in 1993. Further, Afzal told the court that he was frequently asked by the STF to work for them (a senior police official has